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EUROGROUP FOR ANIMALS

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FEEDBACK SUBMITTED BY EUROGROUP FOR ANIMALS ON THE PROPOSAL FOR A REGULATION ON THE WELFARE OF DOGS AND CATS AND THEIR TRACEABILITY

For more than four decades, Eurogroup for Animals has brought together animal advocates throughout Europe to significantly enhance the welfare and protection of animals.

This proposal for a Regulation on the welfare of dogs and cats and their traceability has been extremely well-received, introducing much-needed measures regarding the traceability of cats and dogs, breeding practices, and imported animals. Likewise, we are pleased to note that the recommendations put forth by both the Voluntary Initiative on the health and welfare of pets *(specifically dogs and cats)* and EFSA's opinion on housing and health of cats and dogs in commercial breeding establishments have been substantially recognized.

Nevertheless, we feel that additional efforts are necessary to address issues such as extreme breeding and online sales, among others. To guide the European Commission through our suggested amendments and their underlying reasoning, we will adhere primarily to the structure of the Chapters and, to a lesser extent, the Articles. It is not our aim for this document to be exhaustive in nature.

SUBJECT MATTER & SCOPE

We believe in the need of the subject matter and scope to go beyond cats and dogs, including all animals that are permitted to be traded and kept as pets. As per Art 13 TFEU not only cats and dogs but other companion animals should be *fully regarded* by the Union.

DEFINITIONS

Following the above rationale we advocate for the inclusion of a new definition of *"companion animal"* meaning any dog or cat, or any other animal kept for the purposes of companionship or leisure. Likewise throughout the proposal and whenever relevant, *"dogs and cats"* may be replaced by "*companion animals".*

We believe that "**supplying"** should include anyone while transferring of ownership occurs and natural persons should not be excluded regardless of the means by which the supply takes place, online or offline.

EUROGROUP FOR ANIMALS

CHAPTER II OBLIGATIONS FOR OPERATORS OF ESTABLISHMENTS

This Chapter opens up with an **Exemption** that in our opinion **should only apply to shelters** keeping at any given time ten dogs or less or twenty cats or less on the basis that small shelters often operate on a bona fide, voluntary basis and very scarce resources.

However, **other establishments** regardless of the number of animals under their care should **NOT be exempt** from complying with Chapter II. The rationale behind not exempting them relies on avoiding loopholes on the reasonable likelihood of setting up several establishments under the suggested numbers in **Article 4** and going entirely under the radar.

In relation to Pet Shops we believe the **sale of dogs and cats should be banned in Pet Shops** regardless of the number of animals kept at any given time. Studies published during the past 23 years have suggested that dogs sold through pet stores show an increased number of problem behaviours as adults compared with dogs from other sources, particularly noncommercial breeders (McMillan, 2017, Serpell & Jagoe, 1995).

Following the broadening of the scope from dogs and cats to companion animals, the Commission should include the possibility of adopting implementing acts **to establish a list of fauna species allowed to be placed on the Union market.** The current legal framework *(consisting of different national legislations regulating exotic pets)* creates an "*internal market barrier"* which can obstruct the freedom of movement of goods *(animals)* and result in unequal opportunities in different member states. A clear example of this is found in online markets where an animal illegal to be traded with in the country of the buyer, is legal in the country of the supplier.

Particular attention should be paid to the **breeding of brachycephalic or dogs and cats with extreme features**, "*minimising the negative welfare consequences of brachycephalic traits*" (Article 6.3) is a too vague approach for such a substantial health and welfare issue. Clear definition on what brachycephalic and extreme features mean and a **mandatory health and welfare certification system** for their breeders shall be included.

There are currently scientifically substantiated measuring methods that can be used to quantify objectively the morphological characteristics of short-muzzled dogs related to the risk of developing Brachycephalic Ocular Syndrome (BOS) and Brachycephalic Obstructive Airway Syndrome (BOAS) as a part of a health and welfare certification system.

We recommend an inclusion on a **prohibition of showing brachycephalic breeds or animals with extreme features in exhibitions and competitions** since the blueprint for the "*perfect*" example of such breeds goes against their health and welfare. Normalising such breeds and features through media exposure has an impact on *(impulsive)* purchase decisions for which a prohibition should also be included. (See the Extreme Breeding in Europe-mapping of legislation report).

Impulsive purchases are also favoured by instalment payments which are largely accepted while acquiring a companion animal and are the opposite of responsible ownership hence we recommend a ban on such payment modality.

The Proposal makes no mention of the abuse of some reproductive tools such as artificial insemination in breeds that cannot mate nor give birth naturally as is the case of the brachycephalic breeds and some extreme features. Including the fact that **artificial insemination may only be considered exceptionally, such as to increase genetic variability, and must only be performed by a veterinarian** is recommended.

Special mention should be made to **intrauterine insemination which shall always be prohibited** on the basis of being the one most affecting the welfare of the animals, consisting on general anaesthetic and surgery with high associated risks (See link)

We very much welcome the operator's obligation of informing on responsible ownership while recommending an express mention on providing the acquirer of **the animal with up-to-date evidence-based advice** (Art 8.1)

A **prohibition for minors to buy, sell, obtain or breed companion animals** without the explicit permission of their parents or guardians shall be included under this Chapter. Although most European countries count with such legislation, no EU legislation exists on this currently. *(See The European Convention on the Protection of Pet animals from the Council of Europe that sets the limit at 16 years of age in Article 6).*

Animal welfare visits performed at least once a year should be **unannounced** preventing operators to set up the scene for the *perfect* establishment. (Art 10.1a)

The killing of healthy animals as part of stray animal population control strategies has proven to be an ineffective measure. While ensuring that, of course, euthanasia is performed by a veterinarian, it should also be added: **under anaesthesia and prolonged analgesia, and is only performed if it is established by the veterinary and behavioural examination that the animal is either suffering from an incurable disease or is completely incapable of self-preservation or is dangerous and keeping them alive is manifestly contrary to the rules of their well-being.** (Art 13 2c)

Tethering, except for the duration of a medical treatment, shall be prohibited regardless of the amount of time.

The prohibition of mutilations should be extended to **all** animals traded and kept in the Union and to **all** operators with no exemptions as per Article 4 applying or else, establishments breeding/keeping under a certain number of animals may be kept out from this prohibition. **The placement, supply, advertisement and use on exhibitions/competitions of animals having undergone such procedure for reasons other than medical requirements shall be prohibited.** (Art 15.1)

We believe in the use of positive reinforcement training since it poses fewer risks to dog welfare and quality of the human-dog relationship. In line with The European Society for Veterinary Clinical Ethology we call for the prohibition on exposing dogs and cats to an electric current **for training or containment** *(invisible fencing)***, and use of pinch, prong or electric shock collars or any handling equipment susceptible of causing stress or pain**. (Art 15.3c)

CHAPTER III IDENTIFICATION AND REGISTRATION OF DOGS AND CATS

Identification and Registration should be mandatory for **ALL** dogs and cats. EU law operates with the objective of eliminating existing and **foreseen** barriers to trade, as the latter are just as damaging to the integration of the EU's single market as those that already exist. Within this context it is very important to stress that **ANY** dog or cat can become part of an economic activity at any moment in their life.

When a litter is born, it is difficult to establish whether all, some or none of the animals will be traded. If ALL animals are microchipped and their details are **verifiably** recorded and registered shortly after birth it complies with **Article 114 TFEU**. However, a system where I&R becomes mandatory only when animals are traded leaves enormous inaccuracies in terms of the animals' age, origin, health status etc. Not only that but for example not being able to establish the age of an animal may constitute an impediment to trade as different Member States may have different age restrictions on the trade of dogs and cats from one Member State to another.

With this in mind **Art 17.2** should aim at a **verifiably** identification and registration by a veterinarian; without verification, a database risks holding false information. In addition, registration for **ANY** other dog and cat (**strays**) in the Union, is to be made **in the name of the responsible competent authority**.

Online Platforms must provide not only for the animal I&R to be verified but for the association of that animal to the current owner/supplier, only when both are verified, the ad shall be published. Placing the onus exclusively on the acquirer to verify I&R of the animal is not suitable for traceability accuracy. Such a **double verification system:** Veripet already exists and has been successfully implemented in countries such as Ireland.

CHAPTER V ENTRY OF DOGS AND CATS INTO THE UNION

Traceability of animals entering the EU should start at their country of origin, if registration of an animal coming from a third country starts at the EU, traceability is compromised, leaving a door open to disease spread and undetected forged documents and fraud as pointed out by the EU Action Plan against the Illegal Pet Trade.

In light of this and having already made the case for the need of a **verifiably registration** mentioned in Chapter III, the latter should be **in a database of the country of origin**. Considering this fact, registration of a dog or cat in a Member State database **shall NOT happen before the physical entry of the dog or cat to the Member State of destination** *(to be added in Art. 21.4 second paragraph)*

ANNEX I REQUIREMENTS APPLICABLE TO ESTABLISHMENTS

Temperature and Space allowance

In line with the argument expressed in Chapter II, Art 4 where we believe exemptions should only apply to shelters on the basis that small *(in fact the large the majority)* shelters operate on a bona fide, voluntary basis and very scarce resources; requirements such as Housing Temperature (2.2.1) and Space allowances (2.2.3) may be close to impossible to abide by such shelters.

Although some shelters may be able to largely comply with these requirements, some advocate for an increase of $4m^2$ more of area per animal for dogs of less or than 10Kg and cats *(a total of $8m^2$).*

Still, the large majority of shelters are not commercial in nature and have a marked social purpose. Shelters often struggle to make ends meet leaving very little room for considerable investments in their buildings that some of the requirements in Annex I claim. Of particular concern are the so-called "*peaks*" *(e.g. kitten season, summer holidays etc.)* where aiming at $4m^2$ area per animal will prove beyond reasonable.

Particularly on Temperature, there may be considerable differences between shelters established in southern versus northern parts of the European Union, adding to the somewhat challenging requirements of this Annex for shelters.

Health

With reference to Health (3.3.4) from a veterinarian point of view, three pregnancies in two years are classified as stressful as they are associated with physiological and mental strain for the animals. The number of pregnancies permitted should be reduced from three to **two** pregnancies in two years.

Popular brachycephalic breeds have a high prevalence of obstructed labour, an incidence very evident in the English bulldog[1] and, to a lesser extent, the French bulldog. Caesarean sections are required in approximately 60–80% of cases to solve obstructed labour in bitches[2], perpetuating unnecessary suffering, impeding natural breeding and abusing artificial insemination.

In light of the above the following paragraph should be added: **Breeding with animals that have undergone a caesarean section should be prohibited. In the case of animals in which a caesarean section was necessary due to breeding-related anatomical and physiological changes, bitches should be excluded from breeding from the first caesarean section. Bitches that have had a caesarean section for other reasons should be banned from breeding from the second caesarean section onwards.**

Behavioural needs

Puppies and kittens must have **regular** opportunities for social contact with their conspecifics and humans as mentioned in 4.4.1 a). Regular opportunities is a too vague concept for operators to comply with. As defined by EFSA's opinion on cats and dogs, some

interactions such as for example access to outdoor areas for exercising and socialising is **preferable** to occur on a **daily** basis.

Based on the Responsible Cat Breeding Guidelines and Responsible Dog Breeding Guidelines endorsed by the EU PAW Platform socialisation is of utmost importance during the sensitive periods for both puppies (between 3-14 weeks) and kittens (between 2-9 weeks). Hence it is critical that breeders take responsibility for positively shaping the early experience to prepare them for life in a home environment. For example kittens who receive total **daily** handling between 40 minutes- 2 hours are likely to become confident when handled hence where it reads "*regular*" it should read "**daily"** in both 4.4.1.a) and 4.4.1.b)

Notwithstanding that kittens should not be permanently separated from their mothers before the age of 12 weeks, an exception for poorly socialised queens whose kittens are to be placed with humans should be included for the welfare of both queens and kittens.

As the preeminent pan-European organisation dedicated to animal protection, Eurogroup for Animals directs its primary focus towards advancing the interests of animals. We sincerely anticipate that our approach will prove instrumental in refining the proposal and contributing to the establishment of a societal framework wherein animals are esteemed and acknowledged as sentient beings.

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[1] Wydooghe E, Bergmans E, Rijsselaere T, Van Soom A. International breeder inquiry into the reproduction of the English bulldog. Vlaams Diergen; 2013 February; 82: 38-43. Available from: https://doi.org/10.21825/vdt.v82i1.16726

[2] Gilson SD. Caesarean section. D. Slatter (Ed.), Textbook of Small Animal Surgery, WB Saunders Co., Philadelphia, PA (2003), pp. 1517-1520